

BEFORE THE BEHAVIORAL SCIENCE BOARD OF THE STATE OF IOWA

IN THE MATTER OF

**MARTIN WALLACE
299 Maple Drive
Sibley, Iowa 51249**

RESPONDENT

CASE NO.: 24-0183

**NOTICE OF HEARING, STATEMENT
OF CHARGES, AND EMERGENCY
ADJUDICATIVE ORDER**

COMES NOW the Iowa Board of Behavioral Science (“Board”) and files this Notice of Hearing, Statement of Charges, and Emergency Adjudicative Order against Martin Wallace (“Respondent”), pursuant to Iowa Code sections 17A.12(2), 17A.18(3), 17A.18A, 272C.3(1)(e), and 645 IAC 11.28.

A. TIME, PLACE AND NATURE OF HEARING

1. **Hearing.** A contested case hearing shall be held on July 30, 2024, before the Board. The hearing shall begin at 10:00 a.m. and shall be located in the conference room at the office of the Iowa Board of Behavioral Science, 6200 Park Avenue, Ste. 100, Des Moines, Iowa 50321.

2. **Scheduling Conference.** A scheduling conference to schedule pre-hearing deadlines shall be held by telephone on July 17, 2024 at 9:00 a.m. before Administrative Law Judge Rachel Morgan from the Iowa Department of Inspections, Appeals and Licensing at the following conference line, 855-638-5575. Board rules on prehearing conferences may be found at 645 Iowa Administrative Code 11.17.

3. **Answer.** Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges you are permitted by 645 IAC 11.12 to file an Answer. Should you file an Answer, please note whether you will request a continuance of the date and time of the hearing.

4. **Filing of Pleadings.** Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, 6200 Park Avenue, Ste. 100, Des Moines, Iowa 50321, by

email to tony.alden@dia.iowa.gov, or electronically using the Administrative Electronic Document Management System (adminhearings.iowa.gov/efile/).

5. **Presiding Officer.** The Board shall serve as presiding officer at the contested case hearing, but the Board hereby delegates to an Administrative Law Judge from the Department of Inspections, Appeals and Licensing, the authority to make initial rulings on prehearing matters, and requests the Administrative Law Judge be present to assist and advise the Board at hearing.

6. **Prehearing Conference.** Any party may request a prehearing conference to discuss evidentiary issues related to the hearing in accordance with 645 IAC 11.17.

7. **Hearing Procedures.** The procedural rules governing the conduct of the hearing are found a 645 IAC 11.19. At the hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the requirements of 645 IAC 11.18. The hearing may be open to the public or closed to the public at the discretion of the Respondent.

8. **Prosecution.** The Office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Pleadings shall be filed with the Board and copies should be provided to counsel for the State at the following address: Lindsey L. Browning, Assistant Attorney General, Office of the Iowa Attorney General 1305 E. Walnut Street, 2nd Floor, Des Moines, Iowa 50319.

9. **Communications.** You may not contact Board members in any manner, including by phone, letter, facsimile, in person or e-mail, about this Notice of Hearing and Statement of

Charges. Board members may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Board and serve upon all parties in the case. You may contact Tony Alden, Executive Officer, Iowa Board of Behavioral Science, at 515-281-4401 or tony.alden@dia.iowa.gov, or Assistant Attorney General Lindsey L. Browning at 515-281-3441 or lindsey.browning@ag.iowa.gov.

B. LEGAL AUTHORITY AND JURISDICTION

10. **Iowa License**. Respondent was issued his Iowa mental health counselor license on June 25, 2004. Respondent's Iowa mental health counselor's license will next expire on September 30, 2024.

11. **Jurisdiction**. The Board has jurisdiction in this matter pursuant to Iowa Code § 154D.

12. **Legal Authority**. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code § 154D and 645 Iowa Administrative Code 33.1.

13. **Default**. The Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code § 17A.12(3) and 645 Iowa Administrative Code 11.21.

C. STATEMENT OF CHARGES

COUNT I

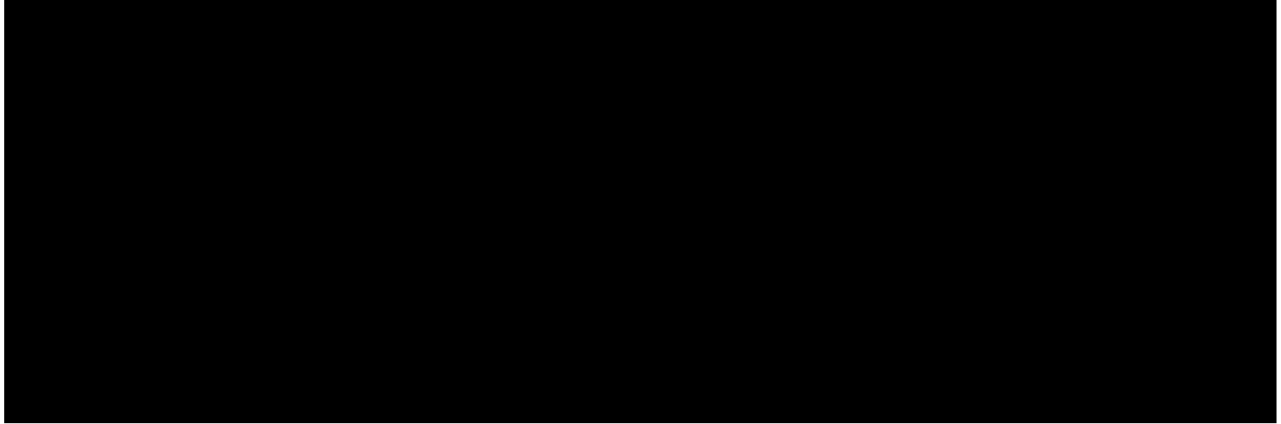
14. Respondent is charged under 645 IAC 33.2(29)(b) with unethical conduct for improper sexual contact with a patient.

COUNT II

15. Respondent is charged under Iowa Code §154D.5 with engaging in sexual activity with a client.

D. FINDINGS OF FACT

16. **Practice Setting**. Respondent is an Iowa licensed mental health counselor who practiced in Sheldon, Iowa, practices in Sheldon, Iowa.



E. SETTLEMENT

18. This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 Iowa Administrative Code 12.1. If you are interested in pursuing settlement of this matter, please contact the Assistant Attorney General identified above.

F. PROBABLE CAUSE FINDING

19. On June 6, 2024, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.

G. CONCLUSIONS OF LAW

20. Iowa Code §272C.3 states in pertinent part, "(n)otwithstanding any other provision of this chapter, each licensing board shall have the powers to: initiate and prosecute disciplinary proceedings [and] impose licensee discipline." Iowa Code § 272C.3(1)(e) and (f).

21. Additionally, the Board may take emergency action "as is necessary to prevent or avoid

the immediate danger to the public health, safety, or welfare...”. Iowa Code § 17A.18A(2); *see also*, 645 Iowa Administrative Code 11.28.

22. Upon review of the allegations in this matter, the Board finds Respondent poses an immediate risk to public safety and emergency action is warranted to avoid further risk to the public.

H. ORDER

IT IS THEREFORE ORDERED:

- A. The Board **SUSPENDS** the mental health counselor license of the Respondent pending further order of the Board.
- B. This suspension is effective on June 6, 2024.

/s/ Amy Mooney MHC
Chairperson
Iowa Board of Behavioral Science

Copy to:
Lindsey L. Browning
Assistant Attorney General
Office of the Iowa Attorney General
1305 E. Walnut Street
Des Moines, Iowa 50319
Lindsey.browning@ag.iowa.gov

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).